

injunctive power, not, as here, a claim for monetary damages. While it is clear that the doctrine of *Ex parte Young* is of no aid to a plaintiff seeking damages from the public treasury, *Edelman v. Jordan*, *supra*; *Kennecott Copper Corp. v. State Tax Comm'n*, 327 U. S. 573 (1946); *Ford Motor Co. v. Dept. of Treasury*, 323 U. S. 459 (1945); *Great Northern Life Insurance Co. v. Read*, 322 U. S. 47 (1944), damages against individual defendants are a permissible remedy in some circumstances notwithstanding the fact that they hold public office. *Myers v. Anderson*, 238 U. S. 368 (1915). See generally *Monroe v. Pape*, 365 U. S. 167 (1961); *Moor v. County of Alameda*, 411 U. S. 693 (1973). In some situations a damage remedy can be as effective a redress for the infringement of a constitutional right as injunctive relief might be in another.

Analyzing the complaints in light of these precedents, we see that petitioners allege facts that demonstrate they are seeking to impose individual and personal liability on the *named defendants* for what they claim—but have not yet established by proof—was a deprivation of federal rights by these defendants under color of state law. Whatever the plaintiffs may or may not be able to establish as to the merits of their allegations, their claims, as stated in the complaints, given the favorable reading required by the Federal Rules of Civil Procedure, are not barred by the Eleventh Amendment. Consequently, the District Court erred in dismissing the complaints for lack of jurisdiction.

III

The Court of Appeals relied upon the existence of an absolute “executive immunity” as an alternative ground for sustaining the dismissal of the complaints by the District Court. If the immunity of a member of the execu-